

Compulsory and Free Education Act, 2018

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 13

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Act Relating to Compulsory and Free Education, 2075 (2018)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Compulsory Education" means the mandatory arrangement for children of an age group specified by the Government of Nepal to be enrolled in a school or other alternative educational institution, to regularly study, and to complete the basic level of study.

(b) "Guardian" means the father, mother, or any person whose name is registered as a guardian in the school, and said term also includes his or her custodian or caretaker.

(c) "Economically Disadvantaged" means the condition of having an annual income less than the prescribed limit.

(d) "Basic Education" means school education from Grade One to Grade Eight.

(e) "Prescribed" or "As prescribed" means prescribed or as prescribed in the rules framed under this Act.

(f) "Privately Invested School" means a school established or operated with private investment, and said term also includes an institutional school existing at the time of commencement of this Act.

(g) "Free Education" means education provided by a school or educational institution without collecting any fee in any title from the student or guardian.

(h) "Principal" means the chief executive officer of a school who leads the school and performs managerial and administrative responsibilities, and said term also includes the principal or other person exercising executive authority who has the primary responsibility for the management of the school or teaching institution.

(i) "Early Childhood Development and Education" means one-year duration of child development and education focused on the holistic development of children who have completed four years of age, provided before entering Grade One.

(j) "Secondary Education" means education from Grade Nine to Grade Twelve or equivalent.

(k) "Mother Tongue Education" means education provided through the medium of any mother tongue of a Nepali community spoken in Nepal, and said term also includes multilingual education based on the mother tongue.

(l) "School" means a public or privately invested school established and operated pursuant to the prevailing

law, and said term also includes a community or institutional school existing pursuant to the prevailing law at the time of commencement of this Act.

(m) "Student" means a person who is enrolled and studying in a school, and said term also includes a person acquiring education through informal, open, alternative, and other programs.

(n) "Special Education" means education provided through a special type and specific medium, keeping children with visual impairment, deafness, autism, intellectual disability, hearing impairment, or severe physical disability or conditions of a similar nature in a separate group.

(o) "Teacher" means a teacher of a school, and said term also includes the Principal.

(p) "Teaching Institution" means a school or higher education providing institution, and said term also includes an institution providing informal, alternative, or open education.

(q) "Public School" means a school operated with the investment or grant of the Government of Nepal, a Provincial Government, or a Local Level, and said term also includes a school operated as a community school pursuant to the prevailing law.

(r) "Public Educational Trust School" means a welfare school established or operated under a public educational trust with the objective of not making profit.

Chapter-2

Citizen's Access to Education and Responsibility of the State

3. Right to Receive Education: (1) Every citizen shall have the right to equitable access to quality education. No one shall be discriminated against on any ground in receiving education.

(2) Every Nepali community residing in Nepal shall have the right to receive education in the mother tongue.

(3) For the purpose of Subsection (1), every citizen shall have the right to become literate, to receive early childhood development and education, basic education, secondary education, and higher education in accordance with this Act or the prevailing law.

(4) Every citizen receiving education shall have the right to gain admission, study, conduct research, participate in examinations, or obtain educational certificates in a school or teaching institution in accordance with this Act or the prevailing law.

(5) Every illiterate citizen shall have the right to become literate as prescribed.

(6) Every citizen shall have the right to receive higher education according to his or her qualification, ability, and interest, fulfilling the conditions and standards as per the prevailing law.

(7) Citizens with disabilities shall have the right to receive education through the medium of special education as well.

(8) Economically disadvantaged citizens, citizens with disabilities, and Dalit citizens shall have the right to receive free higher education.

(9) Children of martyrs who sacrificed their lives during the people's movement, armed struggle, revolution, persons who were disappeared, conflict victims, injured persons, and persons with disabilities shall have the right to receive special opportunities as prescribed.

(10) Every child shall have the right to receive quality education from qualified teachers as provided for in the prevailing law. 4. Responsibility of the State to Provide Education: (1) The responsibility to provide education up to the basic level to every citizen and the duty to make necessary arrangements related thereto shall be of the Government of Nepal, the Provincial Government, and the Local Level.

(2) The responsibility to provide education up to the secondary level to every citizen shall be of the State.

(3) For the purpose of Subsections (1) and (2), the Government of Nepal shall make necessary coordination and provide leadership. 5. Duties of Citizens: (1) Attaining basic level education shall be the duty of every citizen.

(2) Sending his or her children of the age group entitled to receive basic education to school regularly shall be the duty of every citizen. Chapter-3

Compulsory and Free Education

6.

Compulsory Education to be Provided: (1) After the commencement of this Act, the State, through each Local Level, shall make arrangements to provide compulsory education up to the basic level to every child who has completed four years of age and has not completed thirteen years of age. (2) In addition to the education referred to in Subsection (1), at least one year of early childhood development and education shall be provided after the child has completed four years of age. (3) The Local Level shall make arrangements to provide education safely up to the basic level to children affected by natural disasters, accidents, emergency incidents, and other causes. 7. Children to be Enrolled: (1) After the commencement of this Act, the concerned guardian shall cause every child to be enrolled in a school convenient to him or her, in the grade corresponding to his or her age, at the basic level. Explanation: For the purposes of this Chapter, "School convenient to him or her" means a school located within a distance generally up to two kilometers from the place of residence of the guardian of the concerned child. (2) Notwithstanding anything contained in Subsection (1), it shall not be deemed an obstacle to open a school generally within a distance of two kilometers, taking into account the geographical situation of the concerned district, population density, the number of school-going age children, etc. (3) A guardian shall not remove a child from school or prevent him or her from going to school with the intention of depriving him or her of teaching and learning, after the child is enrolled in school pursuant to Subsection (1), without completing education up to the basic level. (4) If children are unable to go to school due to economic, geographical, or physical, mental condition or any other adversity, arrangements may be made for them to study in a residential school as prescribed. (5) A guardian who fails to enroll a school-going age child in school, or who removes a child from school without completing education up to the basic level even after enrollment, may be deprived of the facilities provided by the Local Level. (6) Before depriving of facilities pursuant to Subsection (5), arrangements shall be made to counsel the concerned guardian as necessary and to motivate him or her to send the child to school. 8.

Right to Receive Education from a Convenient School: (1) Every child shall have the right to receive education up to the basic level or secondary level from a school convenient to the place of residence of his or her guardian. (2) If a school as referred to in Subsection (1) is not available for a child of the age entitled to receive basic education, the concerned Local Level shall, within three years from the commencement of this Act, establish a school in that place or make alternative arrangements enabling such child to receive education up to the basic level. (3) Nothing contained in this Section shall prevent the concerned guardian from enrolling his or her child in any other school of his or her choice or the concerned child from being

enrolled and receiving education in another school of his or her choice. 9. Not to Refuse Enrollment: (1) If a guardian requests to enroll his or her child in a school convenient to him or her or in any other school to receive education up to the basic level, the Principal of such school shall not refuse to enroll, except in the following circumstances:- (a) if the number of children fixed for teaching in any grade has already been filled, (b) if the child does not meet the minimum standard of the grade in which he or she desires to be enrolled, (c) if additional children cannot be enrolled due to the physical condition of the school. (2) Notwithstanding anything contained in Clauses (a), (b) and (c) of Subsection (1), children with disabilities or economically disadvantaged children shall be enrolled by their convenient school itself. (3) If it is necessary to refuse enrollment of a child pursuant to Subsection (1), the concerned Principal shall recommend the enrollment of the concerned child to another suitable school nearby, if any. (4) If a child cannot be enrolled pursuant to Subsection (3), the reason shall be given in writing to the guardian, with information to the concerned Ward Office, and such Office shall facilitate the enrollment of such child in a school within the concerned Ward or elsewhere. (5) If enrollment is not possible under Clause (b) of Subsection (1), but the child can meet the standard of any grade of basic level, he or she shall be enrolled in that same school in that same grade, if the guardian so desires. (6) Except for the circumstances mentioned in this Section, refusing to enroll a child shall be punishable. 10.

Not to Expel from School: (1) No child who is enrolled and studying at the basic level in any school shall be expelled from school. (2) A child enrolled in school shall not be prevented or deprived from receiving basic education or taking examinations on account of any indisciplined act or bad conduct. The school shall provide counseling service facilities to such children. (3) If there is a need for improvement in matters including discipline, conduct, teaching and learning of a child receiving basic education, the Principal of the concerned school shall, after discussion or consultation with the concerned guardian, adopt psychosocial counseling or other necessary measures to create an environment for such child to receive education up to the basic level.

11. Re-enrollment to be Made: (1) If any child who has completed five years of age and has not completed twelve years of age, for any reason, could not enroll in school and has not completed study up to the basic level, or has left school without completing basic education, the school shall, subject to Section 9, re-enroll him or her according to his or her age or level. (2) If it is necessary to bring the child enrolled pursuant to Subsection (1) to the same standard as other children of the grade in which he or she is enrolled, the concerned school shall make arrangements for alternative measures. 12. Transfer to be Made: (1) In a situation where any school in which a child is enrolled has not obtained approval to teach up to the basic level, or such school is merged with another school, or the school has to be closed for any reason, the concerned Local Level shall make arrangements to transfer children who have not completed basic education from such school to another convenient school. (2) A child transferred pursuant to Subsection (1) need not be re-enrolled in such school. (3) Notwithstanding anything contained elsewhere in this Section, this Section shall not prevent the student referred to in Subsection (1) or his or her guardian from enrolling in any other school of his or her choice. 13.

Transfer Certificate to be Given: (1) If a child who has not completed education up to the basic level or his or her guardian requests a transfer certificate for any reason to leave the school where he or she is studying and enroll in another school to receive such education, the concerned Principal shall give the transfer certificate immediately, specifying details of the study completed by him or her. (2) After presenting the certificate pursuant to Subsection (1), the school in which the child desires to be enrolled shall, subject to Section 9, immediately enroll him or her. 14. Alternative Education May Be Arranged: (1) A child for whom a convenient school is not available or who for any other reason is unable to attend full-time study in a school and receive basic education shall have the right to receive alternative education up to that level. (2) Other

provisions relating to alternative education up to the basic level shall be as prescribed. 15. Informal and Open Education to be Provided: (1) Children who are unable to regularly study by enrolling in school may be provided secondary level education through informal or open school. (2) The Government of Nepal shall, through Local Levels, make arrangements for the establishment and operation of informal and open schools based on necessity to provide secondary education. (3) Other provisions relating to informal and open schools shall be as prescribed. 16. Traditional Education May Be Provided: (1) Children may be provided education by operating institutions such as Gurukul, Gumba, or Madrasa to preserve and uphold traditional educational values, norms, culture, customs, and practices, and to continue them by making them time-relevant. (2) Gurukul, Gumba, or Madrasa operated to provide education pursuant to Subsection (1) shall be registered with the concerned Local Level. (3) Gurukul, Gumba, or Madrasa registered and operated pursuant to Subsection (2) shall, while providing education to children, comply with the conditions and standards determined by law by the Local Level and other conditions and standards as prescribed. (4) In addition to the education provided by educational institutions such as Gurukul, Gumba, and Madrasa registered and operated pursuant to Subsection (2), they shall provide education according to the curriculum determined by the Government of Nepal. (5) Other provisions relating to providing traditional education shall be as prescribed. 17. Provision Relating to Technical Education: (1) Every citizen who has completed the basic level shall have the right to receive secondary education or equivalent technical education pursuant to the prevailing law. (2) Except as provided in this Section, provisions relating to technical education provided after the basic level shall be according to the prevailing law. 18.

Education of Children Whose Guardians Are Not Identified: (1) If there are children within the geographical area of a Local Level whose guardians are not identified or traced, the responsibility to provide education up to the basic level and to make arrangements for teaching, learning, and other related matters for such children shall be of the concerned Local Level. (2) The concerned Ward Committee of the Local Level shall be responsible for making arrangements to provide education pursuant to Subsection (1). (3) Notwithstanding anything contained in Subsection (1), if the guardian of the concerned child is identified or traced, the guardian himself or herself shall take responsibility for that. (4) Other provisions relating to the teaching and learning of children whose guardians are not identified shall be as prescribed. 19. Not to be Eligible: (1) Notwithstanding anything contained in the prevailing law, for the purpose of creating an environment where all citizens compulsorily receive basic education, after Falgun 1, 2085 (approximately mid-February 2029), a person who has not received basic education shall not be deemed eligible to obtain any of the following opportunities:- (a) to enter any government service of the Government of Nepal, Provincial Government, or Local Level, or service of any institution under full or partial ownership, grant, or control of the Government of Nepal, Provincial Government, or Local Level, or to be elected, appointed, or nominated to any position in any government, non-government, or private sector institution, or to obtain any employment, (b) to establish any company, firm, cooperative, or non-government organization, or to become a founder shareholder, director, member, or office-bearer of such company, firm, or institution. (2) Notwithstanding anything contained in Subsection (1), nothing contained in that Subsection shall affect any person who has already completed twelve years of age before the commencement of the provision of Subsection (1), or who is already incumbent, elected, nominated, or appointed to any position, or who is already working, or who has already obtained or enjoyed any facility. (3) Notwithstanding anything contained in Subsection (1), this Subsection shall not apply to a person who could not receive education due to poor health, multiple disabilities, or any other similar complex reasons. 20. Education up to Secondary Level to be Free: (1) Every citizen shall have the right to receive free education up to the secondary level from the State. (2) While receiving free education, every citizen shall comply with the conditions as per this Act and other prevailing

laws. (3) Other provisions relating to free education shall be as prescribed. 21.

Textbooks to be Provided: (1) The Government of Nepal shall provide to the Local Level, as prescribed, the amount for textbooks for every child of public schools receiving education up to the basic level or secondary level. (2) Upon receiving the amount pursuant to Subsection (1), the concerned Local Level shall provide the amount for textbook purchase to the concerned school at least three months before the start of the academic session. (3) After receiving the amount pursuant to Subsection (2), the school shall purchase textbooks and provide them to students at the time of student enrollment. 22. Educational Materials to be Provided: (1) The Local Level may provide necessary educational materials, including copies and pens, to economically disadvantaged children enrolled in public schools to receive education up to the basic level. (2) The Local Level shall, for public schools providing education up to the basic level, make arrangements for necessary laboratory, extracurricular activity materials, sports materials, sports infrastructure, computer and information technology access as prescribed. (3) Other provisions relating to providing educational materials shall be as prescribed. 23. Scholarship May be Provided: (1) The concerned Local Level may provide monthly scholarship as prescribed to children from families of prescribed communities in areas lagging behind the prescribed index from the perspective of the human development index, or economically disadvantaged citizens, or citizens with disabilities, to receive education up to the basic level. (2) The scholarship obtained pursuant to Subsection (1) shall be spent on educational materials or arrangements for any other materials helpful for the student's learning. 24. Arrangement for Health Treatment: (1) The Local Level may, in cooperation with health institutions operated pursuant to the prevailing law, make necessary arrangements relating to health counseling and treatment for students studying in public schools. (2) The responsibility for making arrangements for free health treatment as prescribed in privately invested and public educational trust schools shall be of the concerned school. 25. Provision Relating to Day Meal: The Government of Nepal may, through Local Levels, provide day meal or day meal expenses as prescribed to children from families of prescribed communities in areas lagging below the prescribed index from the perspective of the human development index, or economically disadvantaged citizens, or citizens with disabilities, to ensure continuity in teaching and learning. 26.

Medium Language of Instruction: (1) The medium of instruction provided by a school may be the Nepali language, English language, or both languages, or the mother tongue of the concerned Nepali community. (2) Notwithstanding anything contained in Subsection (1), if a foreigner studying in Nepal is required to compulsorily study the Nepali subject, and if he or she so desires, he or she may study any other language subject instead. 27. Privately Invested Schools to be Service-Oriented: (1) Privately invested schools shall operate early childhood development and education and basic education in a service-oriented and public welfare manner. (2) Detailed provisions relating to making privately invested schools service-oriented and public welfare oriented shall be as determined by the Government of Nepal. (3) Notwithstanding anything contained in the prevailing law, after the commencement of this Act, every privately invested school and that school operated under a public educational trust shall, on the basis of its student number, reserve seats for providing free education to students as follows, out of the total number of students from early childhood development and education up to Grade Twelve: (a) Schools with up to five hundred students: at least ten percent. (b) Schools with five hundred to eight hundred students: at least twelve percent. (c) Schools with more than eight hundred students: at least fifteen percent. (4) Notwithstanding anything contained in Subsection (2), the scholarship being provided by any school at the time of commencement of this Section shall not be reduced. (5) For the seats reserved pursuant to Subsection (2), the selection procedure shall be adopted and capable and competent children shall be enrolled based on competition among the prescribed groups. (6) The facilities to be provided by the privately invested school to students selected and enrolled for

the reserved seats under Subsection (1) shall be as prescribed. (7) Students studying free of charge after being selected for the reserved seats under Subsection (1) pursuant to Subsection (2) shall be entitled to apply for the purpose of obtaining free study or scholarship in a higher grade, level, or as per the prevailing law, for the grade in which they received free education. Chapter-4 Mother Tongue Education and School Operation 28. Provision Relating to Mother Tongue Education: (1) Every citizen of each Nepali community residing in Nepal shall have the right to receive education up to the basic level or secondary level in his or her mother tongue.

Provided that such education shall be according to the curriculum determined pursuant to the prevailing law. (2) To provide education pursuant to Subsection (1), such community may establish and operate a separate school or teaching institution up to the secondary level. (3) The Government of Nepal may make arrangements for establishing and operating schools or teaching institutions to provide mother tongue education. (4) Notwithstanding anything contained in Subsection (2), in teaching institutions or public schools operated or granted by the Government of Nepal, Provincial Government, or Local Level, mother tongue education in a specific subject may be provided to Nepali citizens as per their demand. 29. School or Teaching Institution to be Operated: (1) The school or teaching institution pursuant to Subsection (2) of Section 28 shall be operated and managed by the same community from which it is established. (2) Notwithstanding anything contained in Subsection (1), the Government of Nepal, Provincial Government, or Local Level may, in order to operate such teaching institution or school providing mother tongue education, provide a certain amount as a grant each year to assist in the operation and management, upon the request of such community. (3) In relation to providing mother tongue education, the Provincial Government or Local Level may make additional arrangements according to local characteristics and needs. Chapter-5 Budget Allocation and Grant for Education 30. Budget Allocation and Grant: (1) The Government of Nepal shall, each year through its budget, allocate grant amounts for the purpose of basic and secondary education to each Local Level based on the number of schools and students and the results obtained by the students. (2) The Provincial Government shall, each year through its budget, allocate a certain amount as a grant to each Local Level for education up to the secondary level according to the provincial law. (3) For teaching institutions operated or granted by the Government of Nepal or Provincial Government themselves, the Government of Nepal or Provincial Government shall allocate necessary grant amounts according to federal law or provincial law. (4) The Local Level shall allocate necessary budget in its annual budget for the purpose of providing education at the basic level and secondary level. (5) While allocating budget pursuant to Subsection (4), it shall be done in such a way that public schools providing education at the basic level or secondary level and each school operated by the Local Level receive budget. 31.

Other Person or Institution May Provide Assistance: (1) Notwithstanding anything contained elsewhere in this Chapter, any person, association, or institution other than the Government of Nepal, Provincial Government, and Local Level may also provide any kind of financial assistance, support, or grant amount to public schools, public educational trusts, or schools established and operated on a non-profit basis providing education at the basic level or secondary level. (2) While providing assistance, support, or amount pursuant to Subsection (1), it shall be done through the Local Level or with the approval of the Local Level. (3) The procedure and format for providing assistance, support, or amount pursuant to Subsection (2) shall be according to the law made by the Local Level. Provided that, prior consent of the Ministry of Finance of the Government of Nepal must be obtained before receiving any assistance, support, or amount from a foreign person, institution, or government other than non-resident Nepalis. Chapter-6 Offense and Penalty 32. Offense and Penalty: (1) If any person commits any of the following acts, he or she shall be deemed to have committed an offense under this Act:- (a) Refusing to enroll a child pursuant to Subsection (1) of Section 9, or failing to provide

written information pursuant to Subsection (4) of the same Section, (b) Expelling a child pursuant to Subsection (1) of Section 10, or preventing or depriving him or her from receiving basic education or taking examinations pursuant to Subsection (2) of the same Section, (c) Refusing to re-enroll a child pursuant to Section 11, or refusing to give a transfer certificate pursuant to Section 13, (d) Committing any act contrary to Section 16, (e) Committing any act contrary to Section 27. (2) If any person commits an offense pursuant to Subsection (1), the guardian of the concerned child may file a petition with the Judicial Committee of the concerned Local Level within fifteen days from the commission of such offense.

Explanation: For the purposes of this Section, "Judicial Committee" means the Judicial Committee pursuant to Article 217 of the Constitution of Nepal.

(3) If an offense pursuant to Subsection (1) is committed, the Judicial Committee may impose a penalty on the concerned Principal as follows:-

- (a) For an offense under Clauses (a) and (c): up to five thousand rupees,
- (b) For an offense under Clauses (b) and (d): up to three thousand rupees,
- (c) For an offense under Clause (e): an amount equal to the proceeds or twenty-five thousand rupees, whichever is higher.

(4) If any amount has been collected contrary to Section 27, such amount shall also be refunded to the concerned person.

(5) An appeal may be filed against the decision made by the Judicial Committee pursuant to Subsection (3) or (4) before the concerned District Court. Chapter-7

Miscellaneous Provisions

33. Special Rights of Citizens with Disabilities and Dalit Citizens: (1) Visually impaired citizens shall have the right to receive free education as prescribed through Braille script, and citizens with hearing or speech-related disabilities through sign language.

(2) In addition to the rights mentioned in this Act regarding receiving education, citizens with disabilities and disadvantaged Dalit citizens shall have additional special rights pursuant to the prevailing law.

(3) Special arrangements shall be made to enroll in school and ensure continuity in learning for Dalit, children with disabilities, and economically disadvantaged children who are out of school. 34. Model Resourceful, Specialized, and Mobile Schools May Be Operated: (1) The Government of Nepal, Provincial Government, or Local Level may establish and operate model resourceful schools, specialized schools, mobile schools, or other schools of a similar special type.

(2) Schools opened or operated pursuant to Subsection (1) shall be established with the permission of the government of the level at which they are opened.

(3) Schools opened or operated pursuant to Subsection (1) shall meet the standards stipulated by the prevailing law. 35. Monitoring Arrangement and Monitoring Indicator: (1) For the implementation of this Act, a mechanism as prescribed shall be established for monitoring.

(2) The ministry of the Government of Nepal dealing with education shall prepare a monitoring indicator for the implementation of the right to education provided for under this Act.

(3) The monitoring indicator pursuant to Subsection (1) shall be made public for the information of the general

public.

(4) The mechanism pursuant to Subsection (1) shall measure whether or not the implementation is in accordance with the monitoring indicator.

(5) Other provisions relating to the monitoring mechanism and indicator shall be as prescribed. 36.

Submission of Report: (1) Each Village Executive or Municipal Executive shall submit a report containing the following details to the Village Assembly or Municipal Assembly each year:- (a) The number of public and private schools operating in the concerned Local Level and the number of children studying in such schools, (b) The number of children enrolled in school up to the basic level, (c) The number of children who have completed basic education after being enrolled in school, (d) The number of students who left school during that year without completing basic education after being enrolled, (e) The amount allocated for basic level and secondary education and its source, (f) Other necessary matters. (2) The report pursuant to Subsection (1) shall be sent annually for information to the ministry of the Government of Nepal dealing with education and the ministry of the Provincial Government dealing with education. 37. Details to be Provided: (1) For the purposes of this Act, each Local Level shall keep updated details of mother tongue speaking, Dalit, persons with disabilities, and economically disadvantaged persons within its area. (2) The details pursuant to Subsection (1) shall be provided to the ministry of the Government of Nepal dealing with education, the ministry of the Provincial Government dealing with education, and the concerned school. 38. Partnership or Collaboration May Be Made: (1) Necessary arrangements may be made so that mutual partnership or collaboration may be entered into between schools and non-governmental institutions operating pursuant to the prevailing law and Local Levels to carry out work relating to improving school management, developing quality education, and enhancing student learning. (2) The implementation of provisions relating to partnership and collaboration pursuant to Subsection (1) shall be according to the prevailing law. 39. To be According to this Act: Schools or teaching institutions operating at the time of commencement of this Act shall be deemed to be established and operated under this Act. 40. Power to Make Rules: The Government of Nepal may make necessary rules for implementing this Act. 41. Power to Make Standards: (1) The ministry of the Government of Nepal dealing with education may, subject to this Act and the rules made under this Act, make necessary standards. (2) Standards made pursuant to Subsection (1) shall be made public.